

Date: 27 March 2026

MEMORANDUM

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

Ref: (a) PR Number(s): [REDACTED]

I. BACKGROUND:

1. In considering the references, FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that, under the circumstances of the contract action, only one source is reasonably available (e.g., urgency, exclusive licensing, brand-name, or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition because only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

**0505\_A APPLETON CRANE REPAIRS CASREP 2026-0006**

1. Provide a description of the item or service required, to include

- a) the name of the required source or brand name
- b) **APPLETON MARINE, INC.**
- c) the required delivery date/period of performance and [REDACTED]
- d) its inten

**The purpose of this item is to remove and install new part, perform weight test, and groom control chest pack.**

2. List the source(s) or known vendor(s) who are able to provide the above described item or service.  
**APPLETON MARINE, INC.**

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A.   **X**   Only one responsible source (select all that apply):

1.   **X**   RESTRICTIVE RIGHTS: the source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service.

a. Explain what is subject to the restrictive rights.

   **TO SUPPORT GFM MATERIAL ORDER REQUEST ISO Grasp spare parts.**

b. If drawings are included, who is identified as “owning” the drawings.

   N/A

2.   **X**   EXCLUSIVE LICENSING AGREEMENTS: The item or service is only available from the Original Equipment Manufacturer (OEM), or there is **ONLY ONE** authorized distributor or technical representative for the OEM.

a. Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

a) **APPLETON MARINE, INC. is the contracted designer and installer and the only source capable of ensuring the correct material is procured to replace parts as required for USNS Grasp .**

b. Identify the distributor / authorized technical representative for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. (*NOTE: If there is more than one distributor / authorized technical representative, then use Part B – Brand Name.*)

\_\_\_\_\_**APPLETON MARINE, INC.**\_\_\_\_\_

3. \_\_\_\_\_ OTHER REASON:

a. \_\_\_\_\_ CRITICAL SHIP EQUIPMENT: The required item is critical ship equipment, the failure of which poses a hazard to the ship, the crew or the environment.

i. SMS Procedure Number: \_\_\_\_\_

b.   **X**   STANDARDIZATION / BRAND NAME: Per MSCs standardization initiative, only the specified make/model of the equipment/parts will satisfy the Government's needs for additional units or replacement items.

i. Identify Make / Model Number(s): **\_ USNS Grasp PARTS ISO**

ii. Identify other vessels with this Make / Model:

\_\_\_\_\_

c.   **X**   FORM, FIT, AND FUNCTION: Item is direct replacement parts / components for existing equipment and must be compatible in terms of form, fit, and function with existing equipment / configurations.

i. Identify Make / Model of existing equipment:

**0006**   **Grasp ISO PARTS 0505\_A\_APPLETON CRANE REPAIRS CASREP 2026-**  

ii. Describe how the equipment must be compatible with the existing configuration.

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

d. \_\_\_\_\_ OTHER:

4. \_\_\_\_\_ UNUSUAL AND COMPELLING URGENCY: The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits. Urgent requirements are supplies or services that will result in work stoppage, or are mission critical and the routine processing time would injure the Government. The determination that the procurement for the above is an urgent and compelling requirement is based on the following:

- a. Date on which the requirement was identified: \_\_\_\_\_
- b. Required delivery date / Period of Performance [REDACTED]
- c. If the difference between a. and b. is more than one week, explain the delay in submitting the requirement.

- d. Estimated production lead time: \_\_\_\_\_
- e. Explanation of why delivery / commencement of services by the date required is needed: (explain the impact to the mission, any special circumstances or conditions, etc.)

- f. CASREP Number: \_\_2026-0006\_\_\_\_\_

IV. ANTICIPATED DOLLAR VALUE OF PROCURMENT: [REDACTED]

V. CERTIFICATIONS AND APPROVALS:

**Technical / Requirement Certification:** I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

